

IN THE DISTRICT COURT OF CALDWELL COUNTY
STATE OF THORNFIELD
CIVIL DIVISION

Case No.: CV-2024-08847

SYNTHEX INDUSTRIAL PARTNERS, INC.,
a Thornfield corporation,

Plaintiff,

v.

NORWOOD FABRICATION GROUP LLC,
a Delaware limited liability company,
and GERALD P. NORWOOD, individually,

Defendants.

COMPLAINT FOR BREACH OF CONTRACT,
FRAUD, AND UNJUST ENRICHMENT

Plaintiff Synthex Industrial Partners, Inc. ("Synthex" or "Plaintiff"), by and through its undersigned counsel, Kavanaugh & Ashworth LLP, hereby files this Complaint against Defendants Norwood Fabrication Group LLC ("Norwood") and Gerald P. Norwood ("Norwood Individual") (collectively "Defendants"), and in support thereof alleges as follows:

PARTIES

1. Plaintiff Synthex Industrial Partners, Inc. is a corporation incorporated and existing under the laws of the State of Thornfield, with its principal place of business at 9900 Commerce Parkway, Caldwell City, TX 77045.
2. Defendant Norwood Fabrication Group LLC is a limited liability company organised under the laws of the State of Delaware, registered to do business in Thornfield, with its registered agent at 302 Industrial Loop, Caldwell City, TX 77046.
3. Defendant Gerald P. Norwood is an individual and the sole managing member of Norwood Fabrication Group LLC, residing at 512 Ridgecrest Drive, Caldwell City, TX 77048.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction pursuant to Thornfield Civil Practice Code Section 14.001, as the amount in controversy exceeds \$75,000.00 exclusive of interest and costs.
5. Venue is proper in Caldwell County pursuant to Thornfield Civil Practice Code Section 15.002(a)(1), as Defendants' principal place of business is located in Caldwell County and the events giving rise to this action occurred in Caldwell County.

FACTUAL BACKGROUND

6. On or about January 15, 2023, Synthex and Norwood entered into a Manufacturing Services Agreement ("MSA") under which Norwood agreed to fabricate and deliver 3,500 custom industrial valve assemblies to Synthex at a total contract price of \$840,000.00, with delivery to occur in four equal quarterly instalments beginning April 1, 2023.
7. Synthex paid Norwood an initial deposit of \$210,000.00 on January 20, 2023, representing 25% of the total contract price, as required by Section 4.1 of the MSA.